

Amendment No. 1 to HB1987

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2019*

House Bill No. 1987

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 57-3-709, is amended by deleting the following language:

The commission shall establish such fees, only pursuant to rules promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and such fees shall be limited only to covering the costs of implementing this part and for the implementation and updating of commission information technology and software.

and substituting instead:

The commission shall establish such fees, only pursuant to rules promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, and such fees must be limited only to covering the costs of implementing this part and for the implementation and updating of commission information technology and software, or other costs as deemed necessary by the commission.

SECTION 2. Tennessee Code Annotated, Section 57-1-108, is amended by deleting the section and substituting:

(a) A person is not eligible for appointment as a member of the commission, and a person is not eligible for employment in any capacity by the commission, if such person has any interest, financial or otherwise, either direct or indirect, in, or is employed by, any business licensed under this title other than interests described in subsection (b).

(b) A member of the commission or employee of the commission shall not own any stock or have any interest of any kind, direct or indirect, pecuniary or otherwise, by loan, mortgage, gift, seeking a loan, or guaranteeing the payment of any loan, in any business licensed under this title; provided, however, that this prohibition does not apply to ownership interests held through diversified investment vehicles, such as mutual funds, pension funds, or other managed investment accounts, in which the person does not exercise control over specific investment decisions.

(c) The commission shall not issue any license under this title to a family member of an employee or member of the commission.

(d) Notwithstanding subsection (c), a family member of an employee or member of the commission may be issued a special occasion license under § 57-4-102, a server permit issued under § 57-3-704, an armed forces import permit issued under § 57-3-220, or similar employee-related permits or similar certifications.

(e) As used in this section, "family member" means a parent, spouse, child, sibling, nephew, niece, aunt, uncle, first cousin, mother-in-law, father-in-law, or the spouse of any such family member.

SECTION 3. Tennessee Code Annotated, Section 57-4-101(n), is amended by deleting the language "golf driving ranges" and substituting instead the language "golf courses".

SECTION 4. Tennessee Code Annotated, Section 57-4-201(b), is amended by adding the following as a new subdivision:

(4) A restricted retail business licensed pursuant to § 57-4-102(34) may provide alcoholic beverages to any lawful patron of the business, regardless of whether the patron is receiving barbering or cosmetology services at the time the alcoholic beverages are served. The provision of alcoholic beverages pursuant to a restricted retail business license is an accessory use, and such use does not, by itself, require a separate business classification, occupancy designation, or physical separation within the premises, if all other statutory requirements are satisfied.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.